(c) Any grower who, pursuant to the provisions of paragraph (a) of this section, has authorized an agent to cast such grower's vote, may rescind such authorization by appearing at the nomination meeting and exercising his right to vote in person.

It is hereby further found that it is impracticable and contrary to the public interest to postpone the effective date and good cause exists for making the provisions hereof effective not later than the date of publication of this document in the FEDERAL REGISTER (60 Stat. 237; 5 U. S. C. 1001 et seq.) in that (1) such amendment establishes a necessary procedure to be followed by producers in having their votes cast by "duly authorized agents" in the election of nominees to fill positions on the Avocado Administrative Committee; and such procedure requires growers who intend to have their votes cast by such agents to file with the committee, not later than January 20, a statement concerning such intention, therefore it is imperative that this amendment be made effective as early as possible in order to provide producers the maximum possible time in which to file said statements; (2) producers and handlers have been notified of the proposed adoption, and recommendation to the Secretary, by the Avocado Administrative Committee of the said amendment to the rules and regulations; (3) notice that the Department was considering such amendment was published in the FEDERAL REGISTER and interested parties afforded opportunity to file written data, views, or arguments in connection therewith; and (4) the new procedure established by such amendment to the rules and regulations will not require any preparation which cannot be completed by the effective time thereof.

(Sec. 5, 49 Stat. 753, as amended; 7 U. S. C. 608c)

Issued this 30th day of December, 1955, to be effective upon publication in the FEDERAL REGISTER.

[SEAL] ROY W. LENNARTSON,
Deputy Administrator.

[F. R. Doc. 56-70; Filed, Jan. 4, 1956; 8:51 a. m.]

[Docket No. AO-268]

PART 1009—MILK IN CLARKSBURG, W. VA., MARKETING AREA

ORDER REGULATING HANDLING

Correction

In Federal Register Document 55-8101, appearing at page 7433 of the issue for Thursday, October 6, 1955, § 1009.5 (f) should read as follows:

§ 1009.5 *Clarksburg marketing area.* * * * (f) the City of Weston in Lewis County * * *.

TITLE 19—CUSTOMS DUTIES

Chapter I—Bureau of Customs, Department of the Treasury

[T. D. 53994]

PART 1—CUSTOMS DISTRICTS AND PORTS

EXTENSION OF LIMITS OF VARIOUS CUSTOMS PORTS OF ENTRY

DECEMBER 28, 1955.

By virtue of the authority vested in the President by section 1 of the act of August 1, 1914, 38 Stat. 623 (19 U. S. C. 2), and delegated to the Secretary of the Treasury by the President by Executive Order No. 10289, September 17, 1951 (3 CFR, 1951 Supp., Ch. II), the limits of the customs ports of entry of Charleston, South Carolina, Key West, Florida, and St. Petersburg, Florida, are hereby extended to include the additional territory described herein, effective upon the date of publication of this Treasury Decision in the FEDERAL REGISTER:

1. The limits of the customs port of entry of Charleston, South Carolina, the headquarters port of Customs Collection District No. 16 (South Carolina), are redefined to include: (1) the territory within the corporate limits of the city of Charleston; (2) all points in Charleston Harbor; and (3) all points on the Ashley and Cooper Rivers, and their tributaries, and all the territory lying between those rivers, and the Cooper and Wando Rivers, in Charleston, Dorchester, and Berkeley Counties, State of South Carolina, bounded on the north by Ashley Phosphate Road, Southern Railway right-of-way, Goose Creek, Atlantic Coast Line Railroad right-of-way, State Highway No. 9, and the Seaboard Airline Railway right-of-way, and bounded on the east by the West Branch of the Cooper River, East Branch of the Cooper River, French Quarter Creek, Clements Ferry Road, and the Wando River. Executive Order No. 8335, January 31, 1940 (5 F. R. 429), is modified accordingly.

2. The limits of the customs port of entry of Key West, Florida, in Customs Collection District No. 18 (Florida), comprising the territory within the corporate limits of that city, are extended to include the territory embracing Stock Island, Monroe County, State of Florida.

3. The limits of the customs port of entry of St. Petersburg, Florida, in Customs Collection District No. 18 (Florida), comprising the territory within the corporate limits of that city, are extended to include the territory lying between Roosevelt Boulevard and Old Tampa Bay (in which the Pinellas County Airport is located), and the territory lying between Gandy Boulevard and Old Tampa Bay, Pinellas County, State of Florida.

Section 1.1 (c), Customs Regulations, is amended by substituting "(including territory described in T. D. 53994)" for "(including territory described in E. O. 8335, Jan. 31, 1940; 5 F. R. 429)" opposite "Charleston" in the column headed "Ports of entry" in District No. 16 (South Carolina); by inserting "(including territory described in T. D. 53994)" opposite "*Key West" in the column headed "Ports of entry" in District No. 18 (Florida); and by adding "; including territory described in T. D. 53994" at the end of the notation within the parentheses, opposite "St. Petersburg" in the column headed "Ports of entry" in District No. 18 (Florida).

(R. S. 161, sec. 1, 37 Stat. 434, sec. 1, 38 Stat. 623, as amended; 5 U. S. C. 22, 19 U. S. C. 1, 2)

[SEAL] DAVID W. KENDALL,
Acting Secretary of the Treasury.

[F. R. Doc. 56-60; Filed, Jan. 4, 1956; 8:49 a. m.]

PROPOSED RULE MAKING

INTERSTATE COMMERCE COMMISSION

[49 CFR Ch. I]

[Ex Parte 195]

REVISED RULES OF PROCEDURE

EXTENSION OF TIME FOR FILING WRITTEN STATEMENTS

DECEMBER 28, 1955.

In its order and notice of proposed rule making in the above proceeding, the Commission set September 6, 1955, as the date by which any interested party may file with the Commission written statements containing data, views, or arguments concerning the proposed revised rules. By notice dated July 27, 1955, the time within which such submittals may be filed was changed to January 6, 1956.

The Commission on December 28, 1955, extended the time within which statements containing data, views, and arguments concerning these proposed rules may be filed, until the further order of the Commission.

HAROLD D. MCCOY,
Secretary.

[F. R. Doc. 56-69; Filed, Jan. 4, 1956; 8:51 a. m.]

SMALL BUSINESS ADMINISTRATION

[13 CFR Part 103]

SMALL BUSINESS SIZE STANDARDS

NOTICE OF PROPOSALS TO ESTABLISH DEFINITION OF SMALL BUSINESS AND METHODS OF CERTIFICATION OF CONCERNS AS SMALL BUSINESSES

Notice is given that the Administrator of the Small Business Administration proposes to adopt the following Regulation on March 1, 1956 and hereby offers an opportunity to all interested persons to submit their views in writing to the

Chairman, Size Standards Committee, Small Business Administration, Room 401, 811 Vermont Avenue NW., Washington 25, D. C., within 30 days from the date of publication of this notice in the FEDERAL REGISTER on the proposed regulations as set forth below:

Sec.
103.1 Purpose.
103.2 Definitions.
103.3 Size standards.
103.4 Size standards certification.
103.5 Challenges and appeals.

AUTHORITY: §§ 103.1 to 103.5 issued under sec. 205, 67 Stat. 234, as amended by 69 Stat. 547; 15 U. S. C. Sup. 634.

§ 103.1 *Purpose.* (a) This part establishes the standards to be used to determine which business concerns are to be considered "small business concerns" within the meaning of and for the purposes of the Small Business Act of 1953, as amended (hereinafter referred to as "act").

(b) Section 202 of the act states in part that "It is the declared policy of Congress that the Government should aid, counsel, assist, and protect insofar as possible the interest of small business concerns in order to preserve free competitive enterprise, to ensure that a fair proportion of the total purchases and contracts for supplies and services for the Government be placed with small business enterprises, and to maintain and strengthen the overall economy of the Nation."

(c) Section 203 of the act states that "For the purposes of this title, a small-business concern shall be deemed to be one which is independently owned and operated and which is not dominant in its field of operation. In addition to the foregoing criteria the Administration, in making a detailed definition, may use these criteria, among others: Number of employees and dollar volume of business."

(d) Section 212 of the act authorizes the Small Business Administration "To determine within any industry the concerns, firms, persons, corporations, partnerships, cooperatives, or other business enterprises, which are to be designated 'small business concerns' for the purpose of effectuating the provisions of this title and to carry out this purpose the Administrator, when requested to do so, shall issue in response to each such request an appropriate certificate certifying an individual concern as a 'small business concern' in accordance with the criteria expressed in this act."

§ 103.2 *Definitions.* As used in this part:

(a) "SBA" means the Small Business Administration.

(b) "Administrator" means the Administrator of SBA.

(c) "Annual dollar volume, annual sales and annual receipts" means such volume, sales and receipts of a concern and its affiliates during the most recently completed fiscal year.

(d) "Number of employees" or "employees" means the average monthly employment of a concern and its affiliates during the preceding 12 months.

(e) "Not dominant" or "non-dominant" means the concerns which are unable because of size, financial structure, location, ownership of sources of raw materials, economic power or volume of business to exercise a controlling influence in any industry or field of operation under consideration. In determining if a concern is non-dominant, the field of operation, the number of small business enterprises involved, the size structure, the technology, the sources and availability of raw materials, industry concentration, acquisition of smaller by larger enterprises, inter-industry competition, static versus dynamic competitive conditions, the impact of Government procurement, financial structure of the small business enterprises, and discontinuances and failures shall be considered.

(f) "Field of operation" means a field of operation sufficient in its scope to include both those enterprises which are engaged in making or marketing or are ready and able to make or market a product or similar product which is of a like nature. A field of operation may be an industry or a segment of an industry as defined in the Standard Industrial Classification.

(g) "Affiliate": A firm is an affiliate of another firm when either directly or indirectly (1) one firm controls or has the power to control the other, or (2) a third party controls or has the power to control both. In determining whether control or the power to control exists, consideration shall be given to all appropriate factors including common ownership, common management and contractual relationships.

(h) "Certificate" means a certificate issued by SBA pursuant to the authority contained in section 212 (c) of the act stating that the holder of the certificate is a small concern.

(i) "Certificate of Competency" means a certificate issued by SBA pursuant to the authority contained in section 212 (d) of the act stating that the holder of the certificate is competent as to capacity and credit, to perform a specific Government procurement contract.

§ 103.3 *Size standards*—(a) *General.* No concern which is dominant in its field of operation or industry is small regardless of the number of its employees or annual dollar volume of its sales or receipts.

(b) *Procurement.* A small business concern for the purpose of Government procurement is a concern that is (1) non-dominant in its field of operation and employs fewer than 500 employees, including the employees of its affiliates, or (2) has been certified as a small business by SBA.

(c) *SBA loans in connection with Certificate of Competency.* A concern which has been granted a Certificate of Competency is deemed to be a small concern for the purposes of SBA financial assistance.

(d) *All other purposes.*—(1) *Manufacturing.* Any manufacturing concern is classified:

(i) As small if it employs 250 or fewer employees;

(ii) As large if it employs more than 1,000 employees;

(iii) Either as small or large, depending on its industry and in accordance with the employment size standards set forth below in Schedule "A", if it employs more than 250 but not more than 1,000 employees. When a manufacturing concern is engaged in the production of a number of products classified into different industries, the appropriate standard to be used is that which is for the industry in which it is primarily engaged.

(2) *Wholesale.* Any wholesale concern is small if its Annual Dollar Volume of Sales is $5,000,000 or less. Any wholesale concern also engaged in manufacturing is not a "small business concern" unless it so qualifies under both the manufacturing and wholesaling standards.

(3) *Retail.* Any retail concern is classified:

(i) As small if its annual sales are $1,000,000 or less;

(ii) As small if it is primarily engaged in making retail sales of general merchandise (including department stores and variety stores) or new and used motor vehicles or groceries with fresh meats and its annual sales are $2,000,000 or less.

(4) *Service trades.* Any service trades concern is small if its annual receipts are $1,000,000 or less except that any hotel or power laundry is small if its annual receipts are $2,000,000 or less. All others are classified as large.

(5) *Contracting.* Any concer primarily engaged in construction is small if its average receipts are $5,000,000 or less for the preceding three years.

(6) *Trucking and warehousing.* Any trucking and warehousing (local and long distance) concern is small if its annual receipts are $2,000,000 or less.

(7) *Taxicabs.* Any taxicab concern is small if its annual receipts are $1,000,000 or less.

(8) *All other businesses.* Any business concern not classified herein may be classified upon application to SBA.

§ 103.4 *Size standards certification*—(a) *Self certification.* A business concern may, in the submission of a bid or a proposal in connection with a Government procurement, certify that it is a small business under the criteria established in § 103.3 (b). This certification is prima facie evidence that such concern is a small business. In cases of challenge or where questions are raised as to the application of the criteria set out in § 103.3 (b), the SBA shall make a final decision as to the size of the concern in question and, where appropriate, certify such concern as small. Concerns in doubt as to their size should apply to SBA for a certificate in accordance with paragraph (b) of this section.

(b) *SBA certificates.* Any business concern which, together with its affiliates, employes 1,000 or less persons, may apply for a certificate by filing an application with the SBA Regional Office for the Region in which the applicant's principal office of business is located. When appropriate, a certificate shall be issued certifying that the applicant is a small business concern within the meaning of the act. Such certification is valid for one year from date of issu-